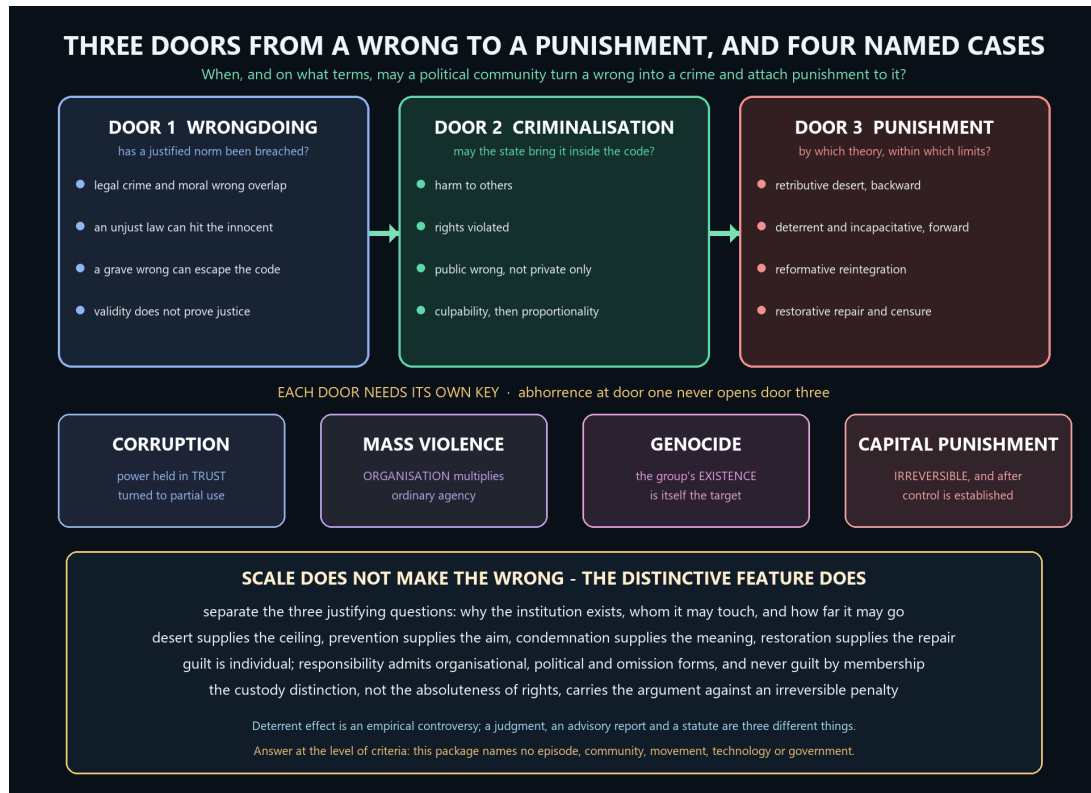


Crime and Punishment - Learner-v2

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / WORKBOOK INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

Crime and Punishment - Learner-v2 Source-Complete Learning Session 3

BASIC MCQS / REMEDIATION 3

RAPID REVISION 1 - Crime as Legal Wrong versus Moral Wrong; the Criminalisation Question	3
RAPID REVISION 2 - Conditions of Just Punishment: Responsibility, Culpability and the Five Theories	3
RAPID REVISION 3 - Retributivism: Desert, Kant, Hegel and the Limits of Punishment	3
RAPID REVISION 4 - Deterrence and Incapacitation: the Utilitarian Justification of Punishment	4
RAPID REVISION 5 - Reform, Dignity, Proportionality and Juveniles	4
RAPID REVISION 6 - The Three-Question Grid and the Mixed / Limiting Theory	4
RAPID REVISION 7 - Expressive, Communicative and Restorative Theories; Foucault's Caution	5
RAPID REVISION 8 - Corruption, Mass Violence and Genocide: the Structural-Wrong Frontier	5
RAPID REVISION 9 - Capital Punishment: the Argument Tree and the Indian Position	5
RAPID REVISION 10 - Inter-School Debates, Criticisms, Traps and the Universal Answer Spine	6
ORIGINAL MCQ MASTERY SET - EXACTLY 48 QUESTIONS	11

PYQS AND ANSWER PRACTICE 20

EXAM APPLICATION 1 - Crime as Legal Wrong versus Moral Wrong; the Criminalisation Question	20
EXAM APPLICATION 2 - Conditions of Just Punishment: Responsibility, Culpability and the Five Theories	21
EXAM APPLICATION 3 - Retributivism: Desert, Kant, Hegel and the Limits of Punishment	21
EXAM APPLICATION 4 - Deterrence and Incapacitation: the Utilitarian Justification of Punishment	21
EXAM APPLICATION 5 - Reform, Dignity, Proportionality and Juveniles	22
EXAM APPLICATION 6 - The Three-Question Grid and the Mixed / Limiting Theory	22
EXAM APPLICATION 7 - Expressive, Communicative and Restorative Theories; Foucault's Caution	22
EXAM APPLICATION 8 - Corruption, Mass Violence and Genocide: the Structural-Wrong Frontier	23
EXAM APPLICATION 9 - Capital Punishment: the Argument Tree and the Indian Position	23
EXAM APPLICATION 10 - Inter-School Debates, Criticisms, Traps and the Universal Answer Spine	24
Workbook Source Audit	24
Practice Design	25
SOLVED PYQ BANK - EXACTLY 12 VERIFIED OWNER QUESTIONS	25
ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS	31

Crime and Punishment - Learner-v2 Source-Complete Learning Session

BASIC MCQS / REMEDIATION

RAPID REVISION 1 - Crime as Legal Wrong versus Moral Wrong; the Criminalisation Question

- Crime = conduct prohibited and punishable by a valid criminal law; moral wrong = conduct violating a justified ethical norm. They OVERLAP but are NOT identical.
- Three accounts, three limits: positivist (rule, but validity is not justice), moral (justice-test, but vague), sociological (exposes power/bias, but risks certainty). Hold all three.
- Criminalisation filter: harm, rights, public wrong, culpability, proportionality; fail any gate and criminalisation is unjustified however disliked the conduct.
- Three separate questions: WRONG (ethics) -> CRIME (criminalisation) -> PUNISH (penal theory). Never justify punishment merely by the wrongness of the act.
- wrong in itself (mala in se) against wrong because prohibited (mala prohibita); the latter rests on coordination, public order and fair notice.
- Trap: equating crime with sin, and sliding from abhorrence straight to punishment.

RAPID REVISION 2 - Conditions of Just Punishment: Responsibility, Culpability and the Five Theories

- Seven conditions of just punishment: prior public law; voluntary act/omission; culpability by a guilty mind (mens rea); fair procedure + proof; competent impartial authority; proportionality; equal application. Any breach = pro tanto indefensible.
- Responsibility ladder: intention > knowledge > recklessness > negligence; excuses (insanity, duress, necessity, infancy) cut the rungs. Causation is NOT responsibility.
- Five theories: Retributive (back / desert), Deterrent (forward / prevention), Preventive (forward / risk), Reformatory (forward / reintegration), Restorative (relational / repair). Each has a signature danger.
- Free will / determinism / compatibilism underlie desert; keep insanity and duress at the philosophical level, do not fabricate statutory tests.
- Trap: treating the five theories as rival answers to ONE question (they are not), or reducing reform to leniency.

RAPID REVISION 3 - Retributivism: Desert, Kant, Hegel and the Limits of Punishment

- Retributivism: punish because a culpable wrong is DESERVED; backward-looking; test is desert; treats the offender as a responsible end, not a means.
- Kant: punishment answers the culpable act, never mere utility (persons as ends, C1). Hegel: punishment negates the crime's wrongful claim and restores right, and is the offender's own right (C2).
- Retribution =/= revenge: public, proportionate, impartial, authorised vs private, unlimited, partial, appetite-driven.
- Limiting retributivism: no punishment without desert, none beyond it; desert is a two-sided CONSTRAINT (floor + ceiling), not a duty to maximise pain.
- Objections: suffering does not undo suffering; background social inequality compromises the fair-opportunity basis of desert; desert fixes limits, not humane institutions.

- Trap: calling retribution "dressed-up vengeance"; treating desert as maximising.

RAPID REVISION 4 - Deterrence and Incapacitation: the Utilitarian Justification of Punishment

- Utilitarian punishment: justified by future harm prevented at least cost; punishment is itself an evil needing justification. Forward-looking.
- Two mechanisms: DETERRENCE (general + specific; change choices) and INCAPACITATION (remove ability; secure custody suffices, execution is the extreme, Subtopic 9).
- Beccaria: certainty and swiftness deter more than severity.
- Presuppositions (all empirical): people weigh costs; sanctions known/certain; benefit exceeds harm; alternatives inadequate. So never claim deterrence is proved.
- Innocent-scapegoat objection -> rule-utilitarian reply (legality, due process preserve trust) -> residual: rights should constrain utility independently.
- Preventive detention worries: forecast vs proven act; false positives; indefinite confinement severs desert. Add a desert side-constraint to answer the means charge.

RAPID REVISION 5 - Reform, Dignity, Proportionality and Juveniles

- Reformatory theory: punish to rehabilitate; offender capable of change; social causes matter; means education, therapy, reintegration (canonical 1.6).
- Dignity (2021 Q2b): reform respects the agent's future BUT risks coercive "normalisation"; in tune with dignity only if consent-based, proportionate, determinate (Foucault caution, C7).
- Objections to pure reform: paternalism; indeterminate "cure-first" sentence; desert-blindness. Reply = mixed theory (reform as aim within desert limits).
- Proportionality (C10): CARDINAL sets the severity scale; ORDINAL sets rankings (worse crime -> worse penalty; like cases alike). Two independent dimensions.
- Juvenile (2023 Q4a): nature of crime is ONE input; culpability is REDUCED for an immature agent; do not punish a child as an adult. Responsibility gradient governs.
- Restorative preview: repair the relation (victim-offender-community); risks power imbalance and being mistaken for leniency (fully in Subtopic 7).

RAPID REVISION 6 - The Three-Question Grid and the Mixed / Limiting Theory

- Separate three questions (Hart): (1) general justifying AIM of punishment; (2) DISTRIBUTION -- who may be punished; (3) AMOUNT -- how much (C4).
 - Pure utilitarianism: right AIM, wrong DISTRIBUTION (could punish the innocent). Pure retributivism: right distribution, weak on the aim. The grid fixes both.
 - Mixed / LIMITING retributivism: forward-looking aim WITHIN backward-looking desert limits; desert = floor (only the guilty) + ceiling (never beyond desert).
 - "AIM forward, LIMIT backward." Utility selects the sentence inside the desert band.
 - Residual tension: if a big benefit tempts breaching the ceiling, hold it LEXICALLY firm, else the theory collapses into disguised utilitarianism (scapegoat reopens).
 - Master key for "critically examine the theories" 15/20-markers: assign each theory its office, then synthesise -- do not merely rank 1-2-3-4.
-

RAPID REVISION 7 - Expressive, Communicative and Restorative Theories; Foucault's Caution

- Expressive (Feinberg, C5): punishment symbolically DENOUNCES the wrong and vindicates the norm/victim; differs from a mere penalty; needs proportionality as a brake.
 - Communicative (Duff, C6): punishment ADDRESSES the offender as a moral agent -- secular penance seeking repentance and reparation; state's STANDING depends on a just order.
 - Foucault (C7): genealogical CRITIC, not a justifying theory; the gentle prison = discipline/normalisation/surveillance (panopticism). Use only as critical caution.
 - Restorative (C8) via reintegrative shaming (Braithwaite, C9): shame the ACT, keep the PERSON; centres victim, repairs relations. Limits: power imbalance, serious offences, and must NOT be mistaken for leniency.
 - Do not duplicate-label: expressive/denunciatory/communicative are one family.
 - Exam use: depth markers and the constructive bridge in synthesis answers.
-

RAPID REVISION 8 - Corruption, Mass Violence and Genocide: the Structural-Wrong Frontier

- Corruption (C14): betrayal of an entrusted public role -- particularistic favour over the universalistic rule; corrodes equal citizenship. (2025 Q1a = this definition, agree with qualification.)
 - Systemic OR ethical (2022 Q1c): BOTH -- individual ethical failure made self-sustaining by systemic incentives; remedies need integrity + institutions.
 - Regimes condition corruption (2020 Q4c): structure shapes opportunity/risk; conditioning is NOT determination -- agency remains.
 - Corruption as mass violence (2019 Q1d): PARTIAL analogy -- structural harm in EFFECTS, but lacks specific intent/directness; state violence-conditions first.
 - Eradication (2018 Q1e): classified statutes (PCA 1988/2018, Lokpal 2013, C15) + integrity culture; both arms.
 - Collective responsibility (C12): guilt individual; organisational, political, omission forms valid; inherited guilt REJECTED. Arendt banality (C11) = psychology, not reduced guilt.
 - Genocide (C13): Lemkin 1944, Convention 1948; specific intent to destroy a protected group AS SUCH; Convention narrower than Lemkin, omits political groups; name no case.
 - Structure conditions crime (poverty/caste/gender, policing bias) but never mechanically excuses the agent.
-

RAPID REVISION 9 - Capital Punishment: the Argument Tree and the Indian Position

- Retention: retribution/desert (Kant, C1, himself retentionist), deterrence (CONTESTED), incapacitation, victim closure.
- Abolition: right to life + dignity, irreversibility of error, arbitrariness / discrimination, brutalisation; Beccaria's utilitarian case (C3).
- Right to life NOT absolute even for defenders (self-defence/necessity) -- but custodial killing is not self-defence (no imminent threat), so the concession does not license execution (2025 Q3a).
- PIVOT -- fallibility verdict: an irrevocable penalty by a fallible, unequally applied process cannot satisfy the proportionate desert offered to justify it.
- Social justice (2019 Q4c): unequal administration deepens injustice (arbitrariness + Duff standing).
- India (C15): Bachan Singh (1980, JUDGMENT) 'rarest of rare'; Law Commission Report

262 (2015, REPORT) abolition except terrorism. Law $\neq$ philosophy; classify facts.

- Separate EMPIRICAL deterrence (2024 Q3b) from MORAL permissibility.

RAPID REVISION 10 - Inter-School Debates, Criticisms, Traps and the Universal Answer Spine

- Four debates (canonical 6): Kant vs Bentham (desert/utility); retribution vs reform (false alternative $\rightarrow$ layered verdict); Arendt vs "monster" (banality, not reduced guilt); loyalty vs impartiality (corruption axis).
- Criticisms $\rightarrow$ replies $\rightarrow$ RESIDUE (canonical 7): name the residue for a first-class answer.
- Ten traps (canonical 8): retribution=vengeance; deterrence "proved"; reform auto-humane; restorative=leniency; Foucault as justification; banality $\Rightarrow$ less guilt; inherited guilt; Convention=Lemkin/naming episodes; corruption flatly = mass violence; legal fact as proof.
- Directive decoder: examine=both sides+verdict; discuss=for/against; comment=defend a position; "do you agree"=thesis+concession.
- Answer spine (8 moves): FRAME-SEPARATE-THEORY-RIVAL-OBJECT-CRITICAL-INDIA-VERDICT.
- Length method: 10 = one distinction + one C-unit + verdict; 15 = 6 moves; 20 = 8 moves.
- Golden rule: separate philosophical validity from implementation from empirical effect.

CANONICAL EXAM APPARATUS (PRESERVED VERBATIM)

The examiner apparatus below is reproduced verbatim from the canonical Crime-and-Punishment.md (headings demoted, navigation links stripped). It is preserved intact so that no canonical depth - the keyword and statement bank with its corpus-driven depth delta, the PYQ routing table for 2018-2025, the answer architecture with its directive decoder, the selectable evidence bank (C1-C15) with each unit's stated limitation and the graded verdict formulas, the link-outs and the sources - is lost in the layered reorganisation.

Keyword and Statement Bank (with Corpus-Driven Depth Delta)

9.1 Keywords

Promoted vocabulary (this pass) ANALYSIS:: general justifying aim · distribution/liability · amount/severity · side-constraint · mixed theory · expressive function · condemnation vs penalty · communicative punishment · secular penance · standing to punish · calling to account · discipline · panopticism · docile bodies · delinquency · restorative justice · reintegrative vs stigmatising shaming · criminal guilt vs political responsibility · differentiated responsibility · destruction of a group as such · specific intent

public wrong · culpability · guilty mind (mens rea) · proportionality · retribution · deterrence · incapacitation · rehabilitation · restorative justice · fiduciary office · particularism · universalism · structural harm · dehumanisation · thoughtlessness · differentiated responsibility · genocidal intent · irreversibility · mitigation

9.2 Reusable statement lines

- FACT: Criminal law is not self-justifying; coercive punishment requires legality, culpability, proportionality and fair procedure.
- ANALYSIS: Corruption is an ethical choice nested in a systemic opportunity structure.
- ANALYSIS: Particular loyalty becomes corruption when it occupies a public role governed by impartial criteria.
- FACT: Mass violence diffuses action but does not dissolve responsibility.
- FACT: Genocide is distinguished not by numbers alone but by the intent to destroy a protected group.
- ANALYSIS: Capital punishment concentrates the deepest penal tensions: desert versus dignity, security versus fallibility, and finality versus reform.
- ANALYSIS: The right-to-life issue is best framed through necessity after custody, not by asserting that every right is exceptionless.

CORPUS-DRIVEN DEPTH DELTA (expanded PYQ audit)

- ANALYSIS: **Priority:** Primary ownership is 12 of 112 parts and spans corruption, mass violence and punishment theory; genocide remains a syllabus obligation despite no direct owned question in the held cycle.
- FACT: **Required doctrinal depth:** Older papers require corruption as mass violence, regime-conditioned corruption, retributivism and human rights, reform and dignity, and capital punishment versus social justice.
- WRONG: **Trap / answer consequence:** Do not answer corruption only as administration or capital punishment only as emotion; use theory, proportionality, deterrence, desert, reform, rights and institutional causation.

PYQ Routing Table (2018-2025)

ANALYSIS: **Corpus signal:** 12 primary-owned question-parts out of 112. The local Paper II corpus is continuous from 2018 through 2025. Cross-links do not create duplicate ownership.

Year	Question	Marks	Exact demand
2018	Q1(e)	10	What measures do you suggest to eradicate corruption in Indian democracy?
2019	Q1(d)	10	Is corruption not a form of mass violence? Discuss.
2019	Q4(c)	15	Does capital punishment weaken the doctrine of social justice? Discuss.
2020	Q3(c)	15	Do you think that retributive theory of punishment is against human rights? Discuss.
2020	Q4(c)	15	How far do the social and political regimes condition corrupt practices in a nation-state? Discuss.
2021	Q2(b)	15	Explain the reformatory theory of punishment and discuss whether this is in tune with human dignity.
2022	Q1(c)	10	Is corruption a systemic issue or an ethical issue? Give your critical comments.
2022	Q1(e)	10	What are the moral justifications of capital punishment? Discuss.
2023	Q4(a)	20	"Severity of punishment should be proportionate to the seriousness of the crime." Do you agree that while punishing a juvenile, the nature of the crime should be considered? Justify your answer.
2024	Q3(b)	15	On what grounds would you accept or reject the idea of capital punishment as an effective deterrent? Discuss.
2025	Q1(a)	10	"Corrupt practices reveal an inherent tension between particularistic and universalistic normative standards." Do you agree with this statement? Give reasons and justification for your answer.
2025	Q3(a)	20	Can one's right to life be absolute? Answer with reference to the idea of Capital Punishment.

See the Socio-Political PYQ Bank, 2018-2025.

Answer Architecture (10 / 15 / 20 Marks)

11.0 Directive decoder - the verb fixes the structure

Directive in the stem	What is actually scored	Compulsory structural move	Failure mode
Explain / Elucidate	internal logic of one theory	statement -> premises -> key distinction -> example	moralising instead of expounding
Discuss	exposition plus one adjudicated tension	theory -> rival -> objection -> reply -> verdict	listing all four theories of punishment with no adjudication
Critically examine / evaluate	the objection-reply layer <i>is</i> the answer	two objections, each with reply and a residual problem	emotive denunciation of crime or of the death penalty
Is X justified?	separate the three justifying questions first	Q1 aim -> Q2 liability -> Q3 amount (§1A.1) -> verdict	one answer offered to three different questions
Should X be abolished / retained?	the <i>criterion</i> of assessment must be named	fix the test (desert, deterrence, dignity, fallibility, equality of application) -> apply -> verdict	asserting a position, then listing arguments for both sides
Is X a form of Y?	the conceptual test for Y must be stated before applying it	define Y's necessary conditions -> test X against each -> verdict, including partial fit	analogy asserted without a test

Directive in the stem	What is actually scored	Compulsory structural move	Failure mode
Do you agree that...	commitment is compulsory, and must be qualified	state the qualified position at the outset, then defend it	a survey with no position taken

11.1 10-mark method (~150 words · 4 moves · ~12 minutes)

1. **Precise concept (2 lines)** in technical vocabulary: guilty mind (*mens rea*), ordinal and cardinal proportionality, specific intent, expressive function, reintegrative shaming, general justifying aim.
2. **Argument (4-5 lines)** as numbered premises, plus the one distinction the stem turns on. 3. **One evidence unit** from §11.4, with its limitation. 4. **Graded verdict (2 lines)** from §11.5 - the **controlling principle** stated, not a summary.

WRONG: At 10 marks do not run the full theory catalogue. One theory or one distinction, fully worked.

11.2 15-mark method (~220 words · 6 moves · ~18 minutes)

1. **Identify the penal purpose or institutional wrong** at issue - not the topic. 2. **The relevant theory** with its argument and presupposition. 3. **The strongest rival**, on the same question of the three (§1A.1). 4. **One table**: the three justifying questions, retributive versus restorative process, the kinds of collective responsibility, or expressive versus communicative. 5. **One fully worked objection** -> **reply** -> **residual problem**, moral and empirical where relevant.
6. **Verdict separating philosophical validity from implementation and from empirical effect** - the distinction candidates most often collapse.

11.3 20-mark method (~300 words · 8 moves · ~25 minutes)

1. **State what makes the case philosophically difficult** - usually a clash between desert, consequence and dignity. 2. **Separate Q1, Q2 and Q3** (§1A.1). This single move reorganises the whole answer and is the highest-yield opening available in this file. 3. **Competing theories** stated in their strongest form. 4. **Rights, dignity, culpability and proportionality** applied to the specific case. 5. **Two objection** -> **reply chains**, one of which should include the fallibility, differentiated-responsibility or standing-to-punish argument. 6. **The critical qualification** - Foucault's disciplinary reading (§1A.4) with its caveat, or Duff's standing condition (§1A.3) - placed in the critical paragraph, never in the justificatory one. 7. **One precisely classified Indian legal illustration**: identify whether it is a statute, a Law Commission report or a judgment, and state that its status is legal rather than probative. 8. **Graded verdict** naming the conditions under which the conclusion holds.

ANALYSIS: On capital-punishment stems, the mark-bearing sequence is: the right to life is not treated as absolute even by its defenders (self-defence, necessity) -> so the question is whether *custodial* killing meets the same conditions -> desert and deterrence arguments -> fallibility, irrevocability and unequal application -> *Bachan Singh* and the 262nd Report **correctly classified** -> verdict.

11.4 Selectable evidence bank - 1 unit at 10 marks, 2 at 15, 4-5 at 20

Each unit is **Claim** -> **Named anchor** -> **Use for** -> **Limitation**.

- **C1 · Punishment is deserved, and the offender is treated as an end.** Claim: punishment must be inflicted because a crime has been committed, never merely as a means to social benefit; it respects the offender as a responsible agent -> Named: Kant, *The Metaphysics of Morals* -> Use for: any justification stem -> Limit: answers Q2 and Q3 well and Q1 poorly - it does not explain why the state must inflict deserved suffering.
- **C2 · Crime annuls right; punishment annuls the annulment.** Claim: punishment restores the violated order of right and is the offender's own right, since his act contained the universal principle he now has applied to himself -> Named: Hegel, *Philosophy of Right* -> Use for: depth on retributivism beyond Kant -> Limit: highly abstract; supplies no measure of severity.
- **C3 · All punishment is an evil, justified only by preventing greater evil.** Claim: penalties should be calibrated to deter at least cost, with certainty and promptness mattering more than severity -> Named: Bentham; Beccaria, *On Crimes and Punishments* -> Use for: deterrence and severity stems -> Limit: unconstrained at Q2 and Q3 - it permits punishing the innocent and unlimited escalation unless a desert side-constraint is added.

- **C4 · Aim and distribution are separate questions.** Claim: an institution may be justified by prevention while its application is governed by desert as a side-constraint -> Named: the three-question grid (§1A.1) -> Use for: the opening of any 15- or 20-mark justification answer -> Limit: presupposes that institutional aim and application principle can coherently come apart.
- **C5 · Punishment condemns; penalties do not.** Claim: the expressive function of authoritative reprobation is what distinguishes punishment from a fee or fine -> Named: Feinberg -> Use for: wrongful conviction, degrading punishment, and "why not just compensate the victim?" -> Limit: if condemnation is the point, hard treatment needs a separate justification.
- **C6 · Punishment addresses the offender as a citizen.** Claim: it is communicative secular penance aimed at repentance, reform and reconciliation, and presupposes the polity's **standing** to call this person to account -> Named: Duff -> Use for: the strongest available bridge from penal philosophy to social justice -> Limit: an invitation backed by force is a strained notion of address.
- **C7 · Modern punishment disciplines rather than merely restrains.** Claim: the shift from spectacle to imprisonment changed the target from body to conduct and the technique to continuous, internalised supervision - panopticism -> Named: Foucault, *Discipline and Punish* (1975 French; 1977 English) -> Use for: the critical paragraph on reformatory rhetoric and on surveillance -> Limit: ANALYSIS: genealogy, not justification; the functional claim is contested; WRONG: attach it to no actual technology, programme or state.
- **C8 · Crime is a harm to persons, and repair is the proper response.** Claim: victim, offender and community jointly address harms, needs and obligations, aiming at reparation and reintegration -> Named: restorative justice (§1A.5) -> Use for: reform, juvenile and victim-centred stems -> Limit: proportionality varies with the victim, and power imbalance makes it inappropriate in domination cases.
- **C9 · Shame the act, not the person.** Claim: stigmatising shaming is criminogenic because it severs bonds and creates outcast identities; reintegrative shaming sustains respect and provides a route back -> Named: Braithwaite -> Use for: the mechanism behind restorative claims; juvenile-justice stems -> Limit: presupposes that the offender values inclusion and that the community will reaccept - both fail for already-excluded groups.
- **C10 · Proportionality has two dimensions.** Claim: ordinal proportionality ranks offences against one another; cardinal proportionality fixes the severity of the scale as a whole -> Named: §1.7 -> Use for: severity, juvenile and death-penalty stems -> Limit: ordinal ranking is easier to defend than any particular cardinal anchor.
- **C11 · Evil can be banal.** Claim: catastrophic wrongdoing can be produced by ordinary functionaries acting without independent thought, within bureaucratic routines and euphemism -> Named: Arendt, *Eichmann in Jerusalem* -> Use for: mass-violence and responsibility stems -> Limit: ANALYSIS: banality does not entail diminished responsibility; the thesis concerns the *psychology* of perpetration, not the *degree* of guilt. Say so, or the point will be read as excuse.
- **C12 · Guilt is individual; responsibility admits collective forms.** Claim: criminal guilt, organisational liability, political responsibility, responsibility for omission and inherited guilt are five distinct claims, of which the last must be rejected -> Named: §3.4A grid -> Use for: collective-responsibility and mass-violence stems -> Limit: attributing political responsibility is contested where citizens had no effective voice.
- **C13 · Genocide names the destruction of a group as such.** Claim: the term was coined by Lemkin (*Axis Rule in Occupied Europe*, 1944) for a coordinated plan aimed at destroying the essential foundations of a group's life; the **1948 Convention** requires specific intent against four protected categories -> Named: Lemkin; the Convention -> Use for: genocide stems -> Limit: ANALYSIS: the Convention is narrower than Lemkin's conception and omits political groups; WRONG: do not claim otherwise, and name no episode.
- **C14 · Corruption is a betrayal of entrusted public role.** Claim: it substitutes particularistic for universalistic standards in offices held in trust, corroding equal citizenship and the fairness of public rules -> Named: §2 of this file -> Use for: corruption stems, including "is corruption a form of mass violence?" -> Limit: the mass-violence analogy is partial - state the necessary conditions for violence before extending the term, and concede the disanalogy in intention and directness.
- **C15 · Indian penal illustrations, correctly classified.** Claim: *Bachan Singh v. State of Punjab* (Supreme Court judgment, 1980) is a **judgment** articulating the rarest-of-rare framework; Law Commission of India **Report No. 262 (2015)** on the death penalty is a **report**, which recommends and does not enact; the Prevention of Corruption Act, 1988 (amended 2018) and the Lokpal and Lokayuktas Act, 2013 are **enacted statutes** -> Use for: the Indian

paragraph in any 20-mark answer -> Limit: FACT: classify each accurately; WRONG: a judgment, report or statute is a dated legal fact and never a philosophical proof.

11.5 Graded verdict formulas (adapt; never reproduce mechanically)

- **Layered verdict:** "Desert fixes the limits, condemnation supplies the meaning, communication supplies the address to the offender, and restoration supplies the repair; the classical opposition between retribution and reform is therefore a false alternative."
- **Question-separating verdict:** "The institution is justified by prevention; its application is constrained by desert. The stem's apparent dilemma dissolves once the general justifying aim is distinguished from the principle of liability."
- **Fallibility verdict:** "Even granting the desert argument, an irrevocable penalty administered by a fallible and unequally applied process cannot satisfy the very principle of proportionate desert that is offered to justify it."
- **Standing verdict:** "The legitimacy of punishment is conditional on the justice of the order that imposes it: a polity that has denied a person the conditions of citizenship has weakened its standing to call him to account."
- **Conditional-appropriateness verdict:** "Restorative process is justified where participation is genuinely voluntary, safety is secured and no entrenched domination is present; it is not a general substitute for public condemnation of grave wrongs."
- **Differentiated-responsibility verdict:** "Leaders, planners, direct perpetrators, enablers, bystanders and resisters do not bear identical responsibility; guilt remains individual, while political responsibility grounds duties of reparation, memory and institutional reform."
- **Critical-qualification verdict:** "Reformative language is not self-validating: a regime can intensify control while describing itself as rehabilitative, which is why the aims of a penal institution must be assessed by its techniques and not only by its stated purposes."

Link-Outs to Related Topics

- Individual and State - rights, accountability and legitimate coercion.
- Social and Political Ideals - justice, dignity and proportionality.
- Forms of Government - regime design, propaganda and accountability.
- Gender Discrimination - structural harm, bodily integrity and agency.
- Caste Discrimination: Gandhi and Ambedkar - graded inequality and institutional violence.
- Kant - persons as ends and retributive responsibility.
- Problem of Evil - moral evil and responsibility.

Sources

- Local course source, *Socio-Political Philosophy*, sections on crime, theories of punishment, capital punishment and genocide.
- O. P. Gauba, *An Introduction to Political Theory*, discussions of authority, justice and public institutions.
- Immanuel Kant, *The Metaphysics of Morals*.
- G. W. F. Hegel, *Philosophy of Right*.
- Jeremy Bentham, *An Introduction to the Principles of Morals and Legislation*.
- Cesare Beccaria, *On Crimes and Punishments*.
- Hannah Arendt, *Eichmann in Jerusalem* and *The Origins of Totalitarianism*.
- Convention on the Prevention and Punishment of the Crime of Genocide (1948) - OHCHR.
- Law Commission of India, Report No. 262, *The Death Penalty* (2015).
- *Bachan Singh v. State of Punjab* (Supreme Court judgment, 1980).
- Prevention of Corruption Act, 1988 (amended 2018), and Lokpal and Lokayuktas Act, 2013, as dated legislative illustrations available through India Code.
- Joel Feinberg, "The Expressive Function of Punishment" - the condemnation criterion distinguishing punishment from penalties. Cited by title only; paraphrased, never quoted.

- R. A. Duff, *Punishment, Communication, and Community* - punishment as communicative secular penance and the standing-to-punish condition. Cited by title only; paraphrased, never quoted.
- Michel Foucault, *Discipline and Punish: The Birth of the Prison* (1975 French; 1977 English translation) - discipline, panopticism and the production of docile bodies. Cited by title and year only; used as genealogy, not as a normative justification.
- John Braithwaite, *Crime, Shame and Reintegration* - the stigmatising/reintegrative shaming distinction. Cited by title only; paraphrased, never quoted.
- Raphael Lemkin, *Axis Rule in Occupied Europe* (1944) - the coinage and original conception of genocide, distinguished from the narrower definition adopted in the 1948 Convention.
- H. L. A. Hart, the separation of the general justifying aim of punishment from the principles governing liability and severity, used as the structure of §1A.1.

ANALYSIS: Provenance note for §1A, §3.4A, §3.4B and §4.1A (added in this pass): these are named-scholar reconstructions adapted into this Philosophy owner. No page, chapter, edition or verbatim wording is asserted for Feinberg, Duff, Foucault, Braithwaite, Lemkin, Hart or Arendt. **WRONG: No country, community, party, government, movement, technology, programme or historical episode is named as an instance of mass violence, genocide, communal violence, pogrom, panopticism or surveillance.** Where a stem invites contemporary comment, answer at the level of criteria rather than by identifying actors.

ORIGINAL MCQ MASTERY SET - EXACTLY 48 QUESTIONS

Questions 1-40 are core coverage - four per subtopic across the ten subtopics; Questions 41-48 are remedial items targeting the most common misreadings. Correct answers rotate strictly A -> B -> C -> D 12 times.

MCQ 1

On the canonical account, the relation between legal crime and moral wrong is best described as:

A. overlapping but not identical -- an unjust law may criminalise morally innocent conduct, while grave moral wrongs may escape legal definition B. identical, since every crime is a moral wrong and every moral wrong is a crime C. mutually exclusive, since law and morality govern wholly separate domains D. identical in content, differing only in the severity of the sanction attached

Correct answer: A - overlapping but not identical -- an unjust law may criminalise morally innocent conduct, while grave moral wrongs may escape legal definition

Explanation: Canonical 1.1: legal crime and moral wrong overlap but are not identical; the validity of a law does not prove its moral justice.

MCQ 2

According to the canonical criminalisation filter, criminalising conduct must be justified through:

A. the legislature's unfettered discretion alone B. harm, rights, public wrong, culpability and proportionality C. the mere fact of majority moral disapproval of the conduct D. the offender's dangerousness assessed only after the act

Correct answer: B - harm, rights, public wrong, culpability and proportionality

Explanation: Canonical 1.1: criminalisation itself needs justification through harm, rights, public wrong, culpability and proportionality.

MCQ 3

The legal-positivist account of crime is limited because:

A. it cannot identify which conduct the law has prohibited B. it collapses the distinction between crime and sin C. the validity of a law does not prove its moral justice D. it denies that power relations shape definitions of deviance

Correct answer: C - the validity of a law does not prove its moral justice

Explanation: Canonical 1.1 table: the positivist account answers 'what has the law prohibited?' but validity does not prove moral justice.

MCQ 4

Which account of crime foregrounds the way norms and power relations define deviance, at the risk of weakening legal certainty?

A. the moral account B. the legal-positivist account C. the retributive account D. the sociological account

Correct answer: D - the sociological account

Explanation: Canonical 1.1 table: the sociological account asks which norms and power relations define deviance; its stated limitation is that it may weaken legal certainty.

MCQ 5

Which of the following is a canonical condition of responsible punishment?

A. a voluntary act or legally relevant omission, with culpability proportionate to intention, knowledge, recklessness or negligence B. a confession obtained by whatever means proves effective C. punishment imposed before the law is publicly known, to maximise deterrent surprise D. a sanction proportioned to the offender's wealth rather than the wrong

Correct answer: A - a voluntary act or legally relevant omission, with culpability proportionate to intention, knowledge, recklessness or negligence

Explanation: Canonical 1.2 lists a public law known in advance, a voluntary act/omission, proportionate culpability, fair procedure, a competent authority, proportionality and equal application.

MCQ 6

The canonical distinction between responsibility and causal contribution holds that:

A. responsibility and causal contribution are always identical B. a person may causally contribute without responsibility, while an official may be responsible for a culpable omission C. only direct physical causation can ever ground responsibility D. officials can never be responsible for omissions

Correct answer: B - a person may causally contribute without responsibility, while an official may be responsible for a culpable omission

Explanation: Canonical 1.2: responsibility is not identical with causal contribution; one may contribute without sufficient knowledge or control, and an official can be responsible for a culpable omission.

MCQ 7

In the canonical five-theory table, the theory whose central test is 'necessity and risk' and whose main danger is 'indefinite or discriminatory confinement' is:

A. retributive B. reformatory C. preventive / incapacitative D. restorative

Correct answer: C - preventive / incapacitative

Explanation: Canonical 1.3: the preventive/incapacitative theory restrains a dangerous offender; its test is necessity and risk and its danger is indefinite or discriminatory confinement.

MCQ 8

Which theory in the canonical table is described as 'relational', with its central test being 'acknowledgement and repair'?

A. deterrent B. retributive C. reformatory D. restorative

Correct answer: D - restorative

Explanation: Canonical 1.3: restorative justice repairs harm through accountable participation of victim, offender and community; its direction is relational and its test is acknowledgement and repair.

MCQ 9

For Kant, punishment becomes illegitimate when it is:

A. imposed merely to produce social utility, treating the person only as an instrument of deterrence B. proportionate to the offender's culpable act C. imposed by a competent and impartial authority D. a response to a maxim incompatible with equal right

Correct answer: A - imposed merely to produce social utility, treating the person only as an instrument of deterrence

Explanation: Canonical 1.4: for Kant punishment must answer the culpable act and cannot be imposed merely for social utility; treating a person only as a deterrent instrument violates rational agency.

MCQ 10

Hegel interprets punishment as:

A. the maximisation of social welfare through deterrent threat B. the negation of the crime's wrongful claim, restoring right while taking the offender seriously as a responsible agent C. the rehabilitation of the offender's impaired capacities D. the repair of harm through victim-offender participation

Correct answer: B - the negation of the crime's wrongful claim, restoring right while taking the offender seriously as a responsible agent

Explanation: Canonical 1.4: Hegel reads punishment as the negation of the crime's wrongful claim; it restores right while treating the offender as a responsible agent.

MCQ 11

The canonical reply to the objection that 'suffering does not undo suffering' is that modern retributivism can be:

A. purely maximising, requiring the greatest deserved pain B. abandoned entirely in favour of deterrence C. limiting rather than maximising -- no one punished without desert, and no penalty exceeding it D. indifferent to proportionality between wrong and sanction

Correct answer: C - limiting rather than maximising -- no one punished without desert, and no penalty exceeding it

Explanation: Canonical 1.4: limiting retributivism holds that no one may be punished without desert and no penalty may exceed it.

MCQ 12

The residual problem the canonical text concedes even for LIMITING retributivism is that it:

A. permits punishing the innocent for social benefit B. makes desert a mere function of social utility C. denies that crime asserts a maxim against equal right D. still needs an account of humane institutions

Correct answer: D - still needs an account of humane institutions

Explanation: Canonical 1.4: the limiting reply still needs an account of humane institutions -- desert fixes limits, not the decency of the prison.

MCQ 13

In the canonical account, specific and general deterrence are distinguished as follows:

A. specific deterrence addresses the offender; general deterrence addresses others B. specific deterrence addresses society; general deterrence addresses the offender C. specific deterrence is backward-looking; general deterrence is relational D. both address only the offender, differing merely in severity

Correct answer: A - specific deterrence addresses the offender; general deterrence addresses others

Explanation: Canonical 1.5: specific deterrence addresses the offender, general deterrence addresses others.

MCQ 14

Which of the following is NOT among the canonical presuppositions of deterrence?

A. persons respond to perceived costs B. punishment is deserved regardless of any preventive benefit C. sanctions are known and sufficiently certain D. less harmful alternatives are inadequate

Correct answer: B - punishment is deserved regardless of any preventive benefit

Explanation: Canonical 1.5 presuppositions are forward-looking (perceived costs, known/certain sanctions, benefit exceeding harm, inadequate alternatives); 'deserved regardless of benefit' is a retributive claim, not a deterrence presupposition.

MCQ 15

The standard objection to deterrence in the canonical text is that it may:

A. treat the offender strictly as an end in himself B. make punishment purely backward-looking C. justify punishing an innocent person where the social benefit is large enough D. require certainty and swiftness in place of severity

Correct answer: C - justify punishing an innocent person where the social benefit is large enough

Explanation: Canonical 1.5: deterrence may justify punishing an innocent person if social benefit is large enough; the reply invokes rule-utilitarian constraints.

MCQ 16

The canonical rule-utilitarian reply to the innocent-punishment objection is itself criticised on the ground that:

A. rule-utilitarianism forbids all punishment whatsoever B. legality and due process actually reduce long-term utility C. specific deterrence is empirically impossible D. rights should constrain utility independently, not merely because respecting them happens to maximise utility

Correct answer: D - rights should constrain utility independently, not merely because respecting them happens to maximise utility

Explanation: Canonical 1.5: critics answer that rights should constrain utility independently of whether respecting them maximises it.

MCQ 17

The canonical 'dignity argument' for reformatory punishment begins from the premise that:

A. persons are more than their worst act, and responsible agency can be impaired and rebuilt B. the offender should be treated purely as a means to social protection C. punishment must maximise the offender's deserved suffering D. rehabilitation requires no limits of proportionality or consent

Correct answer: A - persons are more than their worst act, and responsible agency can be impaired and rebuilt

Explanation: Canonical 1.6 dignity argument: persons are more than their worst act; agency can be impaired and rebuilt; a humane state reduces future wrongdoing through capability, not degradation.

MCQ 18

The canonical reply to the objection that compulsory 'treatment' can pathologise dissent and become indefinite is that rehabilitation must:

A. be abandoned in favour of pure deterrence B. remain bounded by proportionality, consent where possible, review and rights C. continue until the offender is officially certified fully cured D. override the offender's rights for the sake of reform

Correct answer: B - remain bounded by proportionality, consent where possible, review and rights

Explanation: Canonical 1.6: rehabilitation must remain bounded by proportionality, consent where possible, review and rights.

MCQ 19

In the canonical account, cardinal proportionality asks:

A. which offences are more serious than others B. whether a particular offender is capable of reform C. how severe the entire punishment scale may be D. whether a juvenile understood the nature of the act

Correct answer: C - how severe the entire punishment scale may be

Explanation: Canonical 1.7: ordinal proportionality ranks penalties by seriousness; cardinal proportionality asks how severe the whole scale may be.

MCQ 20

On the canonical treatment of juveniles, the nature of the crime is:

A. the sole and conclusive determinant of the punishment B. wholly irrelevant to the moral assessment C. decisive, because the gravity of harm alone fixes culpability D. relevant but not conclusive, since reduced and developing agency can alter culpability even where harm is grave

Correct answer: D - relevant but not conclusive, since reduced and developing agency can alter culpability even where harm is grave

Explanation: Canonical 1.7: the nature of the crime is relevant but not conclusive; a juvenile's reduced, developing agency can alter culpability, and offence-centred and offender-centred views must be integrated.

MCQ 21

The canonical 'three questions' a defensible theory of punishment must keep separate are:

A. the general justifying aim (why punish at all), the distribution/liability question (whom may we punish), and the amount/severity question (how much) B. retribution, deterrence and reform, ranked by importance C. the legal, moral and sociological accounts of crime D. ordinal proportionality, cardinal proportionality and mercy

Correct answer: A - the general justifying aim (why punish at all), the distribution/liability question (whom may we punish), and the amount/severity question (how much)

Explanation: Canonical 1A.1: Q1 general justifying aim, Q2 distribution/liability, Q3 amount/severity; the classic mistake is to give one answer to all three.

MCQ 22

In the canonical grid, the objection that a theory 'permits punishing the innocent where it would deter effectively' is an objection to:

A. retributivism at Q1 B. pure deterrence at Q2, the distribution/liability question C. restorative justice at Q3 D. reformatory theory at Q1

Correct answer: B - pure deterrence at Q2, the distribution/liability question

Explanation: Canonical 1A.1: pure deterrence permits punishing the innocent; this lands at Q2 (distribution), not Q1 -- which is why separating the questions positions the whole essay.

MCQ 23

The canonical objection that a theory 'struggles to explain why the state must inflict deserved suffering' targets:

A. pure deterrence at Q2 B. restorative justice at Q3 C. pure retribution at Q1, the general justifying aim D. reformatory theory at Q2

Correct answer: C - pure retribution at Q1, the general justifying aim

Explanation: Canonical 1A.1: pure retribution struggles to explain why the state must inflict deserved suffering -- an objection at Q1, not Q2 or Q3.

MCQ 24

The 'mixed' or two-level theory the canonical reconstruction endorses is:

A. purely retributivist in both aim and application B. purely consequentialist in both aim and application C. restorative in aim and retributive in application D. consequentialist in aim and retributivist in constraint

Correct answer: D - consequentialist in aim and retributivist in constraint

Explanation: Canonical 1A.1: the strongest position is a mixed theory -- consequentialist in aim (crime prevention) and retributivist as a side-constraint on liability and severity.

MCQ 25

For Feinberg, what distinguishes punishment from a mere penalty (a parking fine or fee) is:

A. its expressive function -- punishment conveys the community's reprobation and condemnation, which a penalty does not B. the greater monetary severity of a punishment C. that penalties are imposed by courts and punishments by legislatures D. that punishment is always reformatory in aim

Correct answer: A - its expressive function -- punishment conveys the community's reprobation and condemnation, which a penalty does not

Explanation: Canonical 1A.2: Feinberg locates the difference not in the hardship but in the expressive function -- punishment carries authoritative condemnation, penalties do not.

MCQ 26

Duff's communicative theory differs from Feinberg's expressive account chiefly in that punishment is:

A. a one-way expression about the offender directed at the public B. a two-way communication addressed to the offender as a responsible member of the moral community, seeking repentance, reform and reconciliation C. purely a technique of surveillance and normalisation D. a repair of harm that requires no admission of guilt

Correct answer: B - a two-way communication addressed to the offender as a responsible member of the moral community, seeking repentance, reform and reconciliation

Explanation: Canonical 1A.3: Duff develops expression into communication addressed TO the offender as a rational participant; hard treatment functions as secular penance.

MCQ 27

The canonical 'compulsory caveat' about Foucault is that his account of discipline and panopticism is:

A. a normative theory of when punishment is deserved B. a defence of retribution against deterrence C. a genealogy of penal power, not a theory of when punishment is justified -- using it as a normative alternative is a category error D. an empirical claim about a named modern surveillance database

Correct answer: C - a genealogy of penal power, not a theory of when punishment is justified -- using it as a normative alternative is a category error

Explanation: Canonical 1A.4: Foucault offers a genealogy of penal power, not a justification; do not treat him as a normative alternative or attach panopticism to any named technology.

MCQ 28

In Braithwaite's theory, stigmatising and reintegrative shaming differ in that:

A. both condemn the person and sever social bonds B. reintegrative shaming labels the offender permanently as bad C. stigmatising shaming reliably reduces reoffending D. stigmatising shaming condemns the person and is criminogenic, whereas reintegrative shaming condemns the act while sustaining respect and offering a route back

Correct answer: D - stigmatising shaming condemns the person and is criminogenic, whereas reintegrative shaming condemns the act while sustaining respect and offering a route back

Explanation: Canonical 1A.5: stigmatising shaming condemns the offender, severs bonds and is criminogenic; reintegrative shaming condemns the act while keeping respect and providing reacceptance.

MCQ 29

The canonical 'best position' on whether corruption is systemic or ethical is that corruption is:

A. an ethical act within a systemic ecology -- structure influences opportunity and cost but does not erase agency B. purely a matter of individual greed and weak character C. purely a systemic equilibrium in which individuals bear no responsibility D. neither ethical nor systemic but merely a legal-technical failure

Correct answer: A - an ethical act within a systemic ecology -- structure influences opportunity and cost but does not erase agency

Explanation: Canonical 2.4: the best position is that corruption is an ethical act within a systemic ecology; character matters, but heroic virtue cannot substitute for sound institutions.

MCQ 30

The canonical verdict on 'is corruption a form of mass violence?' is to:

A. assert flatly that corruption is identical to physical mass violence B. call corruption 'mass violence' only analogically and with a demonstrated harm-chain, otherwise using the term 'structural harm' C. deny that corruption can ever cause serious harm D. treat all large-scale corruption as genocide against the poor

Correct answer: B - call corruption 'mass violence' only analogically and with a demonstrated harm-chain, otherwise using the term 'structural harm'

Explanation: Canonical 2.6: call corruption 'mass violence' only analogically and with a demonstrated harm-chain; otherwise use 'structural harm', since inflation erases the distinctive agency and intent of physical mass violence.

MCQ 31

In the canonical grid of five kinds of collective responsibility, which kind is explicitly REJECTED?

A. criminal guilt of the individual planner or perpetrator B. organisational liability of a body with decision procedures and a chain of command C. metaphysical or inherited guilt attaching to members by ancestry or membership D. political responsibility grounding duties of reparation, memory and reform

Correct answer: C - metaphysical or inherited guilt attaching to members by ancestry or membership

Explanation: Canonical 3.4A: metaphysical/inherited guilt by ancestry or membership is rejected -- it is the very logic that generates atrocity. Guilt is individual; responsibility admits collective forms.

MCQ 32

On the canonical account, the specific-intent element that legally distinguishes genocide under the 1948 Convention is the intent to destroy:

A. any large number of civilians in a widespread attack B. a political or economic group opposed to the state C. an armed enemy force during hostilities D. a national, ethnical, racial or religious group, as such, in whole or in part

Correct answer: D - a national, ethnical, racial or religious group, as such, in whole or in part

Explanation: Canonical 4.1: genocide requires the specific intent to destroy, in whole or in part, a national, ethnical, racial or religious group as such; political groups are not among the four protected categories.

MCQ 33

In the canonical account, capital punishment is 'the hardest case' because:

A. punishment becomes irreversible and eliminates the very subject whose responsibility, reform and rights ground penal theory B. it is the cheapest penalty for the state to administer C. it is universally agreed to be an effective deterrent D. it is the only penalty that can incapacitate offenders

Correct answer: A - punishment becomes irreversible and eliminates the very subject whose responsibility, reform and rights ground penal theory

Explanation: Canonical 5.1: capital punishment is the hardest case because it is irreversible and eliminates the subject whose responsibility, reform and rights ground penal theory.

MCQ 34

The canonical treatment of deterrence as an argument FOR capital punishment marks it as:

A. a proven empirical fact establishing the penalty's necessity B. an empirical claim that execution may deter beyond life imprisonment, which cannot be assumed C. a purely retributive consideration independent of any evidence D. wholly irrelevant to the moral debate

Correct answer: B - an empirical claim that execution may deter beyond life imprisonment, which cannot be assumed

Explanation: Canonical 5.2/5.7: execution may deter beyond life imprisonment, but this is an empirical claim that cannot be assumed; effectiveness must be separated from moral permissibility.

MCQ 35

On the canonical question 'is the right to life absolute?', the strongest abolitionist conclusion is that:

A. all rights are exceptionless and can never be limited B. self-defence and executing a secured prisoner are morally equivalent situations C. deliberate irreversible killing after control is established fails necessity under conditions of fallibility and available alternatives D. the right to life has no bearing whatsoever on capital punishment

Correct answer: C - deliberate irreversible killing after control is established fails necessity under conditions of fallibility and available alternatives

Explanation: Canonical 5.5: a right can be fundamental without being exceptionless; executing a secured prisoner differs from immediate defence, so irreversible killing after control fails necessity given fallibility and alternatives.

MCQ 36

The canonical classification of the Indian legal illustrations holds that:

A. Bachan Singh (1980) is enacted legislation and Report 262 (2015) is a judgment B. both Bachan Singh and Report 262 are Supreme Court judgments C. Report No. 262 (2015) recommended retaining the death penalty for all crimes D. Bachan Singh (1980) is a Supreme Court judgment formulating 'rarest of rare', while Law Commission Report No.

262 (2015) is an advisory report recommending abolition for ordinary crimes but excluding specified terrorism-related and war contexts

Correct answer: D - Bachan Singh (1980) is a Supreme Court judgment formulating 'rarest of rare', while Law Commission Report No. 262 (2015) is an advisory report recommending abolition for ordinary crimes but excluding specified terrorism-related and war contexts

Explanation: Canonical 5.6: Bachan Singh (1980) is a judgment articulating 'rarest of rare'; Report No. 262 (2015) is an official advisory report -- it recommends, it does not enact.

MCQ 37

In the canonical Kant vs Bentham table, the 'main danger' of each position is, respectively:

A. sanctified suffering (Kant) and instrumentalising persons (Bentham) B. instrumentalising persons (Kant) and sanctified suffering (Bentham) C. leniency (Kant) and excess (Bentham) D. indefinite confinement (Kant) and vengeance (Bentham)

Correct answer: A - sanctified suffering (Kant) and instrumentalising persons (Bentham)

Explanation: Canonical 6.1: Kantian retribution's main danger is sanctified suffering; Benthamite deterrence's main danger is instrumentalising persons.

MCQ 38

The canonical synthesis of the retribution vs reform debate is that:

A. reform should wholly replace desert as the basis of punishment B. a mixed theory can set desert as an upper limit and pursue humane reform within it C. retribution and reform are strictly incompatible and cannot be combined D. desert should be maximised regardless of any reform prospects

Correct answer: B - a mixed theory can set desert as an upper limit and pursue humane reform within it

Explanation: Canonical 6.2: a mixed theory sets desert as an upper limit and pursues humane reform within it -- retribution protects agency, reform protects dignity.

MCQ 39

Which of the following is a canonical 'common UPSC trap' to AVOID?

A. distinguishing retribution from revenge B. marking deterrence as an empirical controversy C. arguing that because the right to life has some limits, capital punishment follows D. treating Bachan Singh as a 1980 judgment

Correct answer: C - arguing that because the right to life has some limits, capital punishment follows

Explanation: Canonical 8, trap 10: do not argue that because the right to life has some limits, capital punishment follows; the necessity and custody distinctions remain.

MCQ 40

The canonical 'layered' verdict on the theories of punishment holds that:

A. only retribution can justify any punishment B. only deterrence matters, since punishment is purely forward-looking C. restorative justice should replace all authoritative condemnation D. desert fixes the limits, condemnation supplies the meaning, communication supplies the address to the offender, and restoration supplies the repair

Correct answer: D - desert fixes the limits, condemnation supplies the meaning, communication supplies the address to the offender, and restoration supplies the repair

Explanation: Canonical 1A.5/11.5 layered verdict: desert fixes limits, condemnation supplies meaning, communication supplies the address, restoration supplies repair -- so the retribution-versus-reform opposition is a false alternative.

Remedial MCQ 41

A candidate writes that 'retribution is simply the state's version of revenge.' The best correction is:

A. retribution is public, proportionate and impartial desert administered by a competent authority, whereas revenge is private, unlimited and partial B. retribution and revenge are indeed identical in every respect C. revenge is the more principled of the two D. retribution abandons proportionality altogether

Correct answer: A - retribution is public, proportionate and impartial desert administered by a competent authority, whereas revenge is private, unlimited and partial

Explanation: Canonical Trap 2 / 1.4: retribution claims public, proportionate and impartial desert; conflating it with private, unlimited revenge is the classic error.

Remedial MCQ 42

A candidate asserts that 'capital punishment has been proved to deter murder.' The disciplined correction is:

A. the deterrent effect is a settled empirical fact B. the comparative deterrent effect of execution over life imprisonment is empirically contested and must be marked as an empirical controversy, not asserted as proved C. deterrence has been conclusively disproved D. deterrence is irrelevant because punishment is only ever retributive

Correct answer: B - the comparative deterrent effect of execution over life imprisonment is empirically contested and must be marked as an empirical controversy, not asserted as proved

Explanation: Canonical Trap 3 / 5.2 / 5.7: do not say deterrence is 'proved' or 'disproved' without evidence; separate empirical effectiveness from moral permissibility.

Remedial MCQ 43

A candidate equates the reformatory theory with 'simply being lenient towards criminals.' The correct clarification is:

A. reform indeed means minimal or no punishment B. reform denies that offenders are responsible for their acts C. reform remains compatible with responsibility and proportionate restraint; it addresses capacities and conditions without denying culpability D. reform requires indefinite detention until cure in every case

Correct answer: C - reform remains compatible with responsibility and proportionate restraint; it addresses capacities and conditions without denying culpability

Explanation: Canonical Trap 4 / 1.6: reform is not leniency; it is compatible with responsibility and proportionate restraint, seeking reintegration without denying culpability.

Remedial MCQ 44

A candidate labels every large-scale massacre as 'genocide.' The precise correction is:

A. all mass killings are legally genocide by definition B. genocide requires only a sufficiently high number of victims C. genocide and crimes against humanity are identical legal categories D. genocide requires the specific intent to destroy a protected group as such; not every massacre meets this, and 'crimes against humanity' often does the practical work

Correct answer: D - genocide requires the specific intent to destroy a protected group as such; not every massacre meets this, and 'crimes against humanity' often does the practical work

Explanation: Canonical Trap 5 / 4.2 / 4.5: the special destructive intent against a protected group is decisive; not every massacre is legally genocide.

Remedial MCQ 45

A candidate concludes that 'the whole community is guilty' for mass violence committed in its name. The controlling correction is:

A. guilt is individual, while responsibility admits collective forms; inferring guilt from mere group membership reproduces the perpetrator's own logic B. collective guilt by membership is philosophically sound C. no one can ever be held responsible for mass violence D. political responsibility is identical to criminal guilt

Correct answer: A - guilt is individual, while responsibility admits collective forms; inferring guilt from mere group membership reproduces the perpetrator's own logic

Explanation: Canonical 3.4A / Trap 6: guilt is individual; responsibility (organisational, political, omission) admits collective forms; inherited or metaphysical guilt by membership is rejected.

Remedial MCQ 46

A candidate answers a corruption stem as 'only a problem of bad individual character.' The corrective position is:

A. corruption is only a problem of bad institutions, never of character B. corruption is an ethical act within a systemic ecology; agency and structure are jointly explanatory C. corruption is neither an ethical nor a structural matter D.

heroic individual virtue alone can substitute for sound institutions

Correct answer: B - corruption is an ethical act within a systemic ecology; agency and structure are jointly explanatory

Explanation: Canonical 2.4 / Trap 7: do not answer corruption as only bad character or only bad structure; it is an ethical act within a systemic ecology, agency and structure jointly explanatory.

Remedial MCQ 47

A candidate cites 'the 2015 Law Commission report that abolished the death penalty as law.' The accurate correction is:

A. the 2015 report is enacted legislation binding on the courts B. the 2015 report is itself a Supreme Court judgment C. Law Commission Report No. 262 (2015) is an advisory report that recommended, not legislation; it did not itself abolish the death penalty D. the report abolished capital punishment for all offences with immediate effect

Correct answer: C - Law Commission Report No. 262 (2015) is an advisory report that recommended, not legislation; it did not itself abolish the death penalty

Explanation: Canonical Trap 8 / 5.6: the 2015 Law Commission report is advisory, not enacted law; it recommended abolition for ordinary crimes while excluding specified terrorism-related and war contexts.

Remedial MCQ 48

A candidate argues 'since the right to life already permits killing in self-defence, capital punishment is thereby justified.' The decisive correction is:

A. the inference is valid, because any limit on a right removes it entirely B. self-defence and execution are structurally identical situations C. the right to life is exceptionless, so self-defence killing is also wrong D. immediate defence responds to a present unjust threat, whereas execution follows custody and adjudication with less final means available, so limits in defence do not automatically justify execution

Correct answer: D - immediate defence responds to a present unjust threat, whereas execution follows custody and adjudication with less final means available, so limits in defence do not automatically justify execution

Explanation: Canonical Trap 10 / 5.5: do not infer capital punishment from the mere fact that the right to life has limits; the necessity and custody distinctions break the inference.

PYQS AND ANSWER PRACTICE

EXAM APPLICATION 1 - Crime as Legal Wrong versus Moral Wrong; the Criminalisation Question

This subtopic is the CONCEPTUAL GATEWAY that should open almost any Crime and Punishment answer: fix what a crime is, separate it from moral wrong, and separate criminalisation from punishment, before running any theory.

- On "Is corruption a form of mass violence?" (2019 Q1d) and "Is corruption a systemic or an ethical issue?" (2022 Q1c) the crime-vs-moral-wrong and criminalisation frame is the disciplined opening: name the conceptual test before extending a loaded label. Both are solved in Part II.

- The 10-mark move: define crime (legal) and moral wrong, state that they overlap without being identical, add ONE evidence unit (C14 corruption as betrayal of entrusted role, or C1 desert), and close on the "abhorrence does not license punishment" controlling principle.

- **Ownership caution:** stems that turn on rights-as-entitlement (2025 Q4c "Duties are obligation, Rights are entitlement") are owned by Individual and State, and Rawlsian justice stems by Social and Political Ideals; do not annex them here even though crime touches rights. This clause owns the corruption, mass-violence, punishment-theory and capital-punishment stems -- 12 parts in all.

MEMORY: MEMORY: crime (legal) vs moral wrong (ethical), overlap not identity; then the three doors WRONG -> CRIME -> PUNISH, each with its own key. Open with the distinction, never with the emotion.

EXAM APPLICATION 2 - Conditions of Just Punishment: Responsibility, Culpability and the Five Theories

This subtopic supplies the CHECKLIST and the MENU that structure every punishment answer, and it is directly examined whenever a stem asks about a single theory "in tune with human dignity" or "against human rights".

- On "Explain the reformatory theory ... in tune with human dignity" (2021 Q2b) and

"Do you think that retributive theory of punishment is against human rights?" (2020 Q3c) you must first place the theory on the five-fold map and name its direction and test, THEN run the dignity/rights evaluation. Both solved in Part II.

- The 15-mark move: state the penal purpose at issue -> the relevant theory with its presupposition -> the strongest rival on the SAME question -> one worked objection/reply -> a verdict separating philosophical validity from implementation.

- Evidence pairings: C1 (Kant desert), C3 (Bentham/Beccaria deterrence), C10

(ordinal/cardinal proportionality) are the natural anchors; the responsibility ladder itself is the anchor for any culpability or juvenile stem.

MEMORY: MEMORY: seven-condition checklist for "just punishment"; five-theory menu with direction + test + danger for "why punish?"; responsibility is not causation.

EXAM APPLICATION 3 - Retributivism: Desert, Kant, Hegel and the Limits of Punishment

Retributivism is examined head-on whenever a stem asks whether a theory is "against human rights" or demands the "moral justifications" of a penalty.

- "Do you think that retributive theory of punishment is against human rights?"

(2020 Q3c) is answered by distinguishing retribution from revenge, presenting the LIMITING version (desert as a rights-protecting ceiling, not a licence for cruelty) and then adjudicating -- retribution can PROTECT rights by capping severity, but fails them if it sanctifies suffering. Solved in Part II.

- "What are the moral justifications of capital punishment?" (2022 Q1e) leads with

C1/C2 desert but must immediately flag the fallibility and dignity counters (Subtopic 9); a moral-justification stem is not a licence to omit the objections.

- Evidence: C1 (Kant, persons as ends), C2 (Hegel, crime annuls right), C10

(proportionality has two dimensions). At 20 marks, pair retribution with its strongest rival on the SAME justifying question, never as a stand-alone eulogy.

MEMORY: MEMORY: desert = floor + ceiling; retribution $\neq$ revenge (public, proportionate, impartial); limiting not maximising; the social-inequality objection is the bridge to social justice.

EXAM APPLICATION 4 - Deterrence and Incapacitation: the Utilitarian Justification of Punishment

Deterrence is examined directly on capital-punishment stems and wherever a policy "works or not" question appears.

- "On what grounds would you accept or reject the idea of capital punishment as an effective deterrent?" (2024 Q3b) is a DETERRENCE stem first: separate the empirical question (does execution deter beyond life imprisonment? -- contested, cannot be assumed) from the moral question (even an effective deterrent may violate rights; an ineffective one loses its utilitarian basis). Solved in Part II.

- The 15-mark move: state the deterrence claim and its four presuppositions -> the certainty-over-severity point (Beccaria) -> the innocent-punishment objection with the rule-utilitarian reply and its residual -> a verdict separating effectiveness from permissibility.

- Evidence: C3 (Bentham/Beccaria, punishment as an evil justified by prevention), C7

(Foucault, in the CRITICAL paragraph only -- reformatory/deterrent rhetoric can mask intensified control), C4 (aim vs distribution) to set up the constraint.

MEMORY: MEMORY: deterrence (choices) + incapacitation (ability); certainty > severity; never say "deterrence is proved"; separate EFFECTIVENESS from PERMISSIBILITY.

EXAM APPLICATION 5 - Reform, Dignity, Proportionality and Juveniles

This subtopic owns two high-value PYQs outright, one on reform-and-dignity and one on proportionality-and-juveniles.

- "Explain the reformatory theory of punishment and discuss whether this is in tune with human dignity." (2021 Q2b) -- lead with the reform aim and its dignity case (canonical 1.6), then the coercion/indeterminacy/Foucault worries (C7), then a bounded verdict: in tune with dignity IF consent-respecting, proportionate and determinate. Solved in Part II.

- "'Severity of punishment should be proportionate to the seriousness of the crime.'

Do you agree that while punishing a juvenile, the nature of the crime should be considered?" (2023 Q4a) -- deploy ordinal/cardinal proportionality (C10) and the reduced-culpability gradient; agree that nature is one input, deny it overrides developmental culpability. Solved in Part II.

- Evidence: canonical 1.6 (reform and dignity), C7 (Foucault caution), C8 (restorative), C10 (two proportionalities).

MEMORY: MEMORY: reform in tune with dignity ONLY if bounded (consent, proportionality, determinate ceiling); ordinal vs cardinal proportionality; juvenile = nature is an input, culpability is reduced.

EXAM APPLICATION 6 - The Three-Question Grid and the Mixed / Limiting Theory

The three-question grid is a method, not a PYQ owner: it is the ARCHITECTURE that upgrades a 15- or 20-mark theories answer from a list into a judgement.

- Deploy it on any stem that says "critically examine / evaluate the theories of punishment" or forces a choice between retribution and deterrence: separate aim from distribution, assign each rival its office, then converge on limiting retributivism.

- On rights-vs-utility stems (2020 Q3c retribution and human rights; 2024 Q3b deterrence) the grid supplies the reconciling move: rights operate at the DISTRIBUTION level as side-constraints while utility may inform the AIM.

- Evidence: C4 (general justifying aim vs distribution), plus C1/C2 (desert side) and C3 (utility side) as the two inputs the funnel combines.

MEMORY: MEMORY: three questions -- AIM (forward), DISTRIBUTION (desert floor), AMOUNT (desert ceiling). Limiting retributivism = utility WITHIN desert limits; hold the ceiling lexically firm or it collapses into utilitarianism.

EXAM APPLICATION 7 - Expressive, Communicative and Restorative Theories; Foucault's Caution

These theories rarely own a PYQ alone but are the DEPTH markers that lift a synthesis answer from competent to distinctive.

- On "critically examine the theories of punishment" 20-markers, add the communicative family as the bridge between backward-looking desert and forward-looking reform: punishment as censure that ADDRESSES the offender unifies both orientations.

- On the juvenile stem (2023 Q4a) and reform stem (2021 Q2b), restorative and reintegrative approaches are the constructive proposal after the critique -- but flag the power-imbalance and serious-offence limits so you are not read as "soft on crime".

- Foucault (C7) belongs in the CRITICAL paragraph of any reform/deterrence answer, as the caution that "humane" penal rhetoric can conceal deeper control.

- Evidence: C5 (Feinberg, expressive censure), C6 (Duff, communicative penance and standing), C7 (Foucault), C8 (restorative), C9 (Braithwaite, reintegrative shaming).

MEMORY: MEMORY: Feinberg = censure (SPEAK); Duff = penance/standing (ADDRESS); Braithwaite = reintegrative shaming (REPAIR); Foucault = disciplinary critique, not a justifying theory. Restorative != leniency; limited by power imbalance and grave crimes.

EXAM APPLICATION 8 - Corruption, Mass Violence and Genocide: the Structural-Wrong Frontier

This subtopic OWNS FIVE of the topic's twelve PYQ parts -- the corruption cluster plus the mass-violence analogy -- so its exam architecture is the most valuable in the file.

- 2018 Q1e (measures to eradicate corruption) -> both arms: classified statutes (PCA 1988/2018, Lokpal 2013) + integrity culture. Solved in Part II.
- 2019 Q1d (is corruption a form of mass violence?) -> partial analogy, conditions of violence first, concede the intention/directness disanalogy. Solved in Part II.
- 2020 Q4c (regimes condition corrupt practices) -> conditioning not determination; opportunity/discretion/accountability. Solved in Part II.
- 2022 Q1c (systemic or ethical?) -> BOTH/AND, individual failure made self-sustaining by systemic incentives. Solved in Part II.
- 2025 Q1a (particularistic vs universalistic tension) -> agree with the qualification that corruption is the WRONGFUL subordination of universal rule to particular tie. Solved in Part II.
- Evidence: C14 (corruption/betrayal of trust + mass-violence-analogy limit), C15 (classified Indian statutes), C11 (Arendt banality), C12 (five kinds of collective responsibility), C13 (Lemkin 1944 / Convention 1948).

MEMORY: MEMORY: corruption = particular over universal in a trusted role; systemic AND ethical; conditions not determines; mass-violence analogy PARTIAL (effects yes, intention no); genocide = specific intent vs a group "as such"; structure conditions, never erases, agency.

EXAM APPLICATION 9 - Capital Punishment: the Argument Tree and the Indian Position

Capital punishment is the single most examined node in this file -- four of the twelve PYQ parts turn on it, each hitting a different branch of the tree.

- 2019 Q4c (does capital punishment weaken social justice?) -> arbitrariness / discrimination + Duff standing; unequal administration deepens injustice. Solved in Part II.
- 2022 Q1e (moral justifications of capital punishment) -> lead with desert (C1) and incapacitation, then immediately the fallibility/dignity counters -- a justification stem still requires the objections. Solved in Part II.
- 2024 Q3b (accept/reject as an effective deterrent) -> separate the EMPIRICAL deterrence question (contested, not proven) from the MORAL permissibility question. Solved in Part II.
- 2025 Q3a (can the right to life be absolute?) -> "not absolute" concession, then the custodial-killing-is-not-self-defence move, then fallibility. Solved in Part II.
- Evidence: C1 (Kant desert, incl. his own retentionism), C3 (Beccaria's utilitarian abolitionism + deterrence limits), C10 (proportionality), C15 (Bachan Singh 1980, Report 262/2015, correctly classified).

MEMORY: MEMORY: argue both sides fully; Kant retained, Beccaria abolished (state both accurately); right to life not absolute BUT custodial killing != self-defence; fallibility + irreversibility is the pivot; Indian facts are FACTS not proofs.

EXAM APPLICATION 10 - Inter-School Debates, Criticisms, Traps and the Universal Answer Spine

This subtopic is pure exam method: it does not own a fresh PYQ so much as supply the ARCHITECTURE for all twelve.

- 10-mark (canonical 11.1): one distinction fully worked -> one evidence unit with its limit -> a two-line graded verdict. Do NOT run the whole theory catalogue.
- 15-mark (canonical 11.2): purpose -> theory + presupposition -> strongest rival on the same question -> one table -> one worked objection->reply->residual -> verdict separating validity from implementation from empirical effect.
- 20-mark (canonical 11.3): state what makes it hard -> separate the three questions -> competing theories at full strength -> rights/dignity/culpability/proportionality on the case -> two objection chains (one being fallibility / differentiated responsibility / standing) -> the critical qualification (Foucault or Duff) -> one classified Indian illustration -> graded verdict naming conditions.
- Graded verdict formulas (canonical 11.5): layered, question-separating, fallibility, standing, conditional-appropriateness, differentiated-responsibility, critical-qualification. Adapt; never reproduce mechanically.
- Evidence: the full C1-C15 bank is assembled here -- 1 unit at 10 marks, 2 at 15, 4-5 at 20, each Claim -> Named anchor -> Use -> Limitation.

MEMORY: MEMORY: FRAME-SEPARATE-THEORY-RIVAL-OBJECT-CRITICAL-INDIA-VERDICT; match the directive; every reply leaves a residue; separate validity from implementation from empirical effect.

Workbook Source Audit

- Exact PYQ wording, year and marks: local Socio-Political Philosophy Paper II bank, 2018-2025.
- Exactly 12 owner questions (2018:1, 2019:2, 2020:2, 2021:1, 2022:2, 2023:1, 2024:1, 2025:2).
- Ownership discipline: obligation/resistance and civil-disobedience stems (Individual and the State), abstract rights/justice or entitlement framing (Social and Political Ideals), ideology-label stems (Political Ideologies), caste/gender-discrimination stems (Gender and Caste Discrimination) and integrity-only stems (Ethics, GS-IV) are kept separate and not double-owned here.
- Model solutions authored at examiner grade: thesis -> doctrine in canonical terms -> named evidence unit (C1-C15) or Indian legal example -> objection/reply/residual -> graded verdict, each closing with a "Why this earns marks" note.
- MCQs: 40 core plus 8 remedial, exactly 48, strict A-B-C-D rotation 12 times.
- Original Mains: one solved 10-marker, one solved 15-marker and one solved 20-marker.
- Provenance discipline observed throughout: Kant, Hegel, Bentham, Beccaria, Feinberg, Duff, Foucault, Braithwaite, Lemkin, Hart and Arendt by position and standard title only; Foucault as genealogy, not justification; the Prevention of Corruption Act 1988 (amended 2018), the Lokpal and Lokayuktas Act 2013, Bachan Singh v. State of Punjab (1980) with 'rarest of rare', Law Commission Report No. 262 (2015), the Genocide Convention (1948) and Lemkin (1944) as dated, correctly classified facts, not philosophical proof; no episode, community or government named as an instance.
- No current-affairs anchor is used (no verified 2026 development forced); relevance is static and syllabus-driven.
- Final consolidated register notes are intentionally excluded from this workbook.

Practice Design

The workbook sequence is the 12 exact verified PYQs -> 40 core MCQs -> 8 remedial MCQs -> original 10/15/20-mark Mains practice. There are no register notes and no canonical apparatus block in this workbook.

DIRECTIVE -> THESIS -> DOCTRINE -> NAMED EVIDENCE (C1-C15) / EXAMPLE -> OBJECTION / REPLY / RESIDUAL -> VERDICT

SOLVED PYQ BANK - EXACTLY 12 VERIFIED OWNER QUESTIONS

Exact wording, year and marks are parsed from the local Socio-Political Philosophy Paper II bank for 2018-2025. This clause owns exactly 12 primary parts (2018:1, 2019:2, 2020:2, 2021:1, 2022:2, 2023:1, 2024:1, 2025:2). Ownership discipline (explained, not silently double-owned): obligation-, resistance- and civil-disobedience stems are routed to Individual and the State; abstract rights-and-justice or entitlement/distribution framing to Social and Political Ideals; ideology-label stems (liberalism, socialism, Marxism as doctrines) to Political Ideologies; caste- and gender-discrimination stems to Gender and Caste Discrimination; and pure probity-of-conscience or integrity-only stems to Ethics (GS-IV) and Indian Polity. Only the twelve punishment-theory, corruption, mass-violence, genocide and capital-punishment parts above are counted here.

Solved PYQ 1 - 2018 Q1(e), 10 marks

Question: What measures do you suggest to eradicate corruption in Indian democracy?

Model solution

Thesis. Corruption cannot be eradicated by law OR by ethics alone: because it is at once a systemic incentive-problem and an individual ethical failure, the only credible programme is TWIN-TRACKED -- accountable institutions plus a universalistic integrity culture.

- **Doctrine.** Corruption is the betrayal of an entrusted public role, substituting particularistic favour (kin, caste, party, bribe-payer) for the universalistic standards that offices held in trust demand (C14). It therefore has two roots: weak institutional accountability makes betrayal rational and routine, while a culture that tolerates favouritism makes it normal.

- **Institutional measures, correctly classified (C15).** The Prevention of Corruption Act, 1988 (amended 2018) and the Lokpal and Lokayuktas Act, 2013 are ENACTED STATUTES -- their thrust is to reduce monopoly and discretion, strengthen accountability and transparency, and protect disclosure. These are dated legal facts, not philosophical proofs, but they name the institutional arm.

- **Ethical measure and the objection -> reply.** Objection: laws alone fail where norms reward loyalty over rule. Reply: pair institutions with the cultivation of universalistic public-service integrity, since systemic incentives and individual character are mutually reinforcing (the 2022 Q1c both/and applied as policy).

Verdict. Eradication requires reducing discretion and raising accountability (institutional) WHILE building a culture in which the universal public rule overrides particular loyalty (ethical); neither arm suffices alone.

MEMORY: MEMORY: Why this earns marks -- a 10-marker kept to one worked distinction (systemic/ethical) with correctly classified statutes (C15) and a twin-tracked verdict, not a scattershot list of "solutions".

Solved PYQ 2 - 2019 Q1(d), 10 marks

Question: Is corruption not a form of mass violence? Discuss.

Model solution

Thesis. Corruption is a form of STRUCTURAL violence in its EFFECTS, but it is not identical to physical mass violence in its NATURE; so I agree with the analogy only when it is stated with its limit (C14).

- **Doctrine.** State the necessary conditions of "violence" first. Corruption RESEMBLES mass violence in its aggregate, diffuse harm -- it can deprive many people of health, food, safety and justice -- and in its structural, impersonal causation. It DISANALOGISES in intention and directness: it usually lacks the specific intent to injure bodies and works through diverted resources rather than direct assault.

- **Objection -> reply.** Objection: the analogy either trivialises physical atrocity

or inflates "violence" until the word loses meaning. Reply: restrict the claim to STRUCTURAL violence and openly concede the disanalogy in intention and directness; then the comparison illuminates corruption's lethal scale without conflating it with a massacre.

Verdict. Corruption is "a form of mass violence" as structural harm in its consequences -- yes; as identical in nature to intended physical mass violence -- no. The word must be qualified, not asserted flatly.

MEMORY: MEMORY: Why this earns marks -- it refuses both the easy "yes" and the dismissive "no", states the conditions of violence, and lands the exact C14 discipline (effects yes, intention no).

Solved PYQ 3 - 2019 Q4(c), 15 marks

Question: Does capital punishment weaken the doctrine of social justice? Discuss.

Model solution

Thesis. Capital punishment weakens the doctrine of social justice not through its abstract concept but through its ADMINISTRATION: because the penalty falls unequally on the poor and marginalised, its practice deepens the very inequalities social justice exists to correct.

- **Doctrine.** The arbitrariness / discrimination objection (canonical 5): quality of counsel, investigative bias and social position skew who is actually sentenced to death, so the penalty tracks disadvantage rather than desert. Proportionate desert (C10) itself demands equal treatment of like cases, which unequal administration violates. Duff's standing argument (C6) sharpens this: a polity that has denied a person the conditions of citizenship has weakened its moral standing to impose the ultimate penalty on him.

- **Objection -> reply.** Objection: these are implementation flaws, curable by procedure, not objections to the penalty in principle. Reply: for an IRREVERSIBLE penalty, systematic unequal application is not a contingent blemish but a reason the practice cannot satisfy the proportionate desert offered to justify it -- the fallibility verdict.

Verdict. Capital punishment weakens social justice because its irreversible and unequal administration entrenches disadvantage; separate the philosophical concept of desert from the socially skewed practice, and it is the practice that fails.

MEMORY: MEMORY: Why this earns marks -- it routes "social justice" through the arbitrariness objection plus Duff's standing (C6), and separates philosophical validity from implementation rather than moralising.

Solved PYQ 4 - 2020 Q3(c), 15 marks

Question: Do you think that retributive theory of punishment is against human rights? Discuss.

Model solution

Thesis. Retributive theory is against human rights only in its MAXIMISING form, which sanctifies suffering; in its LIMITING form, desert is precisely what PROTECTS rights, by capping how much the state may inflict.

- **Doctrine.** Distinguish retribution from revenge (canonical Trap 2): public, proportionate, impartial desert versus private, unlimited, appetite-driven payback. Kant treats the offender as an END and a responsible agent, never a mere means to social benefit (C1); Hegel's punishment honours the offender as the author of a maxim now applied to himself (C2). Limiting retributivism makes desert a two-sided CONSTRAINT -- no punishment without desert (floor), none beyond it (ceiling).

- **Objection -> reply.** Objection: retribution licenses cruelty and adds pointless suffering, offending dignity. Reply: the limiting version forbids exactly this, because proportionality caps severity; and the social-inequality objection is met by conceding that unfair background conditions can REDUCE desert, not by abandoning desert.

Verdict. Properly limited, retributivism is a rights-GUARANTEE: by tying punishment to proportionate desert it shields the offender from utilitarian excess. It threatens rights only when it forgets its own ceiling.

MEMORY: MEMORY: Why this earns marks -- it turns the expected "retribution vs rights" clash on its head via limiting retributivism (desert as ceiling, C1/C2) and answers the cruelty and inequality objections directly.

Solved PYQ 5 - 2020 Q4(c), 15 marks

Question: How far do the social and political regimes condition corrupt practices in a nation-state? Discuss.

Model solution

Thesis. Social and political regimes CONDITION corrupt practices substantially -- by structuring opportunity, discretion and accountability -- but conditioning is not DETERMINATION: the responsible agent, bound by a universalistic duty, remains.

- **Doctrine.** Corruption is the particularistic capture of a trusted public role

(C14). Regimes set the incentive structure: monopoly plus wide discretion minus accountability raises corruption risk; concentrated power, weak transparency and impunity condition it further. So regime type explains the PROPENSITY and pattern of corruption across nation-states.

- **Objection -> reply.** Objection: a "systemic" reading excuses individuals -- "the regime made me corrupt". Reply: hold both levels together -- systemic incentives raise the probability of betrayal while the office-holder's universalistic obligation stays binding (the structural-justice caution: structure conditions, it does not erase agency).

Verdict. Regimes condition corruption strongly but not deterministically; the remedy is to redesign the structure -- reduce discretion, raise accountability (Lokpal 2013, PCA 1988/2018, C15) -- WITHOUT dissolving individual responsibility.

MEMORY: MEMORY: Why this earns marks -- it answers "how far" with a graded "strongly but not deterministically", names the opportunity/discretion/accountability mechanism, and keeps agency intact.

Solved PYQ 6 - 2021 Q2(b), 15 marks

Question: Explain the reformatory theory of punishment and discuss whether this is in tune with human dignity.

Model solution

Thesis. The reformatory theory is in tune with human dignity ONLY when it is bounded -- by consent, proportionality and a determinate ceiling. Unbounded, "treatment" can offend the very dignity it claims to serve.

- **Doctrine.** Reform treats the offender as capable of moral change and aims at rehabilitation, education and reintegration (canonical 1.6). The dignity CASE: this respects the person as an agent with a future rather than fixing a permanent criminal identity. The dignity WORRY: an indeterminate "cure-first, release-later" sentence hands officials open-ended power, and Foucault (C7) warns that a "gentle" reformatory apparatus can intensify discipline and normalisation rather than liberate.

- **Objection -> reply.** Objection: pure reform is paternalistic and desert-blind -- it could detain a minor offender indefinitely until "cured" while releasing a "reformed" serious offender, offending proportionality. Reply: the mixed theory bounds reform as an AIM within desert LIMITS (a proportionate ceiling), which preserves both the forward-looking good and the person's dignity.

Verdict. Reform is in tune with dignity when it is consent-respecting, proportionate and determinate; it violates dignity when it becomes coercive, open-ended normalisation.

MEMORY: MEMORY: Why this earns marks -- it gives a CONDITIONAL yes, states reform's dignity credentials AND the Foucault/indeterminacy dangers (C7), and resolves via the bounded mixed theory.

Solved PYQ 7 - 2022 Q1(c), 10 marks

Question: Is corruption a systemic issue or an ethical issue? Give your critical comments.

Model solution

Thesis. The dichotomy is false: corruption is BOTH systemic and ethical -- an individual ethical failure that becomes self-sustaining through systemic incentives.

- **Doctrine.** Ethically, corruption is a betrayal of an entrusted role, choosing the particular over the universal (C14). Systemically, weak accountability and wide discretion make that betrayal rational, routine and expected. The two levels reinforce each other: bad incentives corrode character, and corroded character captures institutions.

- **Objection -> reply.** Objection: calling corruption "systemic" excuses the agent.

Reply: systemic conditioning raises the probability of betrayal, but the office-holder's universalistic duty remains binding, so responsibility survives alongside the structural diagnosis.

Verdict. Corruption is systemic AND ethical; effective response therefore combines institutional design (C15) with the cultivation of integrity -- neither alone reaches the whole phenomenon.

MEMORY: MEMORY: Why this earns marks -- it names the either/or as a false dichotomy, holds both levels with C14, and keeps the 10-marker tight around one controlling distinction.

Solved PYQ 8 - 2022 Q1(e), 10 marks

Question: What are the moral justifications of capital punishment? Discuss.

Model solution

Thesis. The moral justifications of capital punishment are RETRIBUTIVE (desert), DETERRENT and INCAPACITATIVE -- but a justification stem still requires stating the fallibility and dignity counters that defeat them.

- **Doctrine.** Retributively, the gravest murders can seem to deserve the gravest penalty; Kant himself defended the death penalty on strict retributive grounds (C1) -- state this accurately, not as caricature. Deterrence claims execution uniquely saves future victims (contested, C3). Incapacitation guarantees the offender never kills again.

- **Objection -> reply.** Objection: irreversibility, human fallibility and unequal application undercut the desert case. Reply: even GRANTING desert, an irrevocable penalty administered by a fallible and unequally applied process cannot satisfy the proportionate desert offered to justify it -- and secure imprisonment already incapacitates, so incapacitation does not require killing.

Verdict. The justifications are genuine but defeasible: retributive desert is the strongest, yet fallibility plus irreversibility is the counter it cannot survive.

MEMORY: MEMORY: Why this earns marks -- it answers the "justifications" demand fully (C1 desert, deterrence, incapacitation) but a 10-marker still lands the decisive fallibility limit rather than eulogising the penalty.

Solved PYQ 9 - 2023 Q4(a), 20 marks

Question: "Severity of punishment should be proportionate to the seriousness of the crime." Do you agree that while punishing a juvenile, the nature of the crime should be considered? Justify your answer.

Model solution

Thesis. I agree that severity should be proportionate to seriousness, and that the NATURE of a juvenile's crime is a relevant input -- but it must not OVERRIDE the reduced culpability of a developmentally immature agent, whose desert, and therefore deserved severity, is lower.

- **What makes it hard.** The stem pits the seriousness of the ACT against the status of the OFFENDER, and it forces a choice only if we conflate the two.

- **Doctrine.** Proportionality has two dimensions (C10): ordinal proportionality ranks worse crimes above lesser ones; cardinal proportionality fixes the overall severity scale. The maxim in the stem is ordinal. Crucially, desert presupposes responsible agency (canonical 1.2); a juvenile's capacities for deliberation and self-control are still forming, so CULPABILITY -- the basis of desert -- is reduced (the responsibility gradient). Reformative prospects are also greater (canonical 1.6), and restorative / reintegrative approaches (C8, C9) fit the

juvenile case. Separating the three questions (C4) shows the AIM (prevent harm, reform) does not settle the AMOUNT (desert-capped severity).

- **Objection -> reply (two chains).** (1) Objection: grave crimes are grave whoever commits them, so a heinous juvenile act warrants adult severity. Reply: the seriousness of the act is not irrelevant, but proportionate desert tracks culpability, which immaturity reduces -- so nature is one INPUT, not an OVERRIDE. (2) Objection: reduced culpability means impunity and ignores victims. Reply: reduced is not zero; a proportionate, reform-oriented and restorative response answers victims without treating a child as an adult.

- **Critical qualification.** Foucault's caution (C7): open-ended "treatment" of juveniles risks disciplinary control, so keep a determinate ceiling. Indian juvenile-justice and proportionality principles are legal facts (C15), not philosophical proofs, and no specific holding is asserted here.

Verdict. Agree with proportionality; in juvenile cases weigh the nature of the crime as ONE factor within a desert reduced by developmental immaturity -- individualised justice that neither trivialises grave harm nor punishes a child as an adult.

MEMORY: MEMORY: Why this earns marks -- a 20-marker that separates the three questions (C4), deploys ordinal/cardinal proportionality (C10) and the responsibility gradient, runs two objection chains, and lands a genuinely graded verdict.

Solved PYQ 10 - 2024 Q3(b), 15 marks

Question: On what grounds would you accept or reject the idea of capital punishment as an effective deterrent? Discuss.

Model solution

Thesis. I would REJECT reliance on capital punishment as a deterrent -- separating the EMPIRICAL question (does execution deter beyond life imprisonment?) from the MORAL question (even an effective deterrent may be impermissible). On both, the case fails.

- **Doctrine.** Deterrence rests on empirical presuppositions (C3): offenders weigh costs, and sanctions are known and certain. Beccaria's decisive point is that CERTAINTY and SWIFTNESS of detection deter more than SEVERITY of penalty -- so the marginal deterrent of execution OVER life imprisonment is not established and must never be assumed "proved" (Trap 3). If that marginal effect is unproven, the distinctively utilitarian ground for execution collapses.

- **Objection -> reply.** Objection: if it deters even slightly, it saves innocent lives and is justified. Reply: (a) the marginal effect is empirically unproven; (b) using the offender purely as a lever to frighten others instrumentalises him, the Kantian charge (C1); (c) irreversibility means wrongful executions cannot be corrected -- fallibility defeats the practice independently of deterrence.

Verdict. Reject on deterrence grounds: the empirical case is unproven and the moral case is independently defeated by instrumentalisation and irreversibility. What deters is the certainty of detection, not the severity of the penalty.

MEMORY: MEMORY: Why this earns marks -- it splits effectiveness from permissibility, uses Beccaria's certainty-over-severity (C3), and refuses to assert deterrence as proven.

Solved PYQ 11 - 2025 Q1(a), 10 marks

Question: "Corrupt practices reveal an inherent tension between particularistic and universalistic normative standards." Do you agree with this statement? Give reasons and justification for your answer.

Model solution

Thesis. I agree, with one qualification: corruption IS the wrongful subordination of universalistic public rules to particularistic loyalties -- but the tension is between the DEMANDS OF PUBLIC OFFICE and particular ties, not a claim that every particular attachment is corrupt.

- **Doctrine.** Offices held in trust demand universalistic standards -- treat like

cases alike, serve the public rule impartially. Corruption substitutes particularistic favour (kin, caste, community, bribe-payer) for that rule (C14). The tension the statement names is real because public roles require impartiality while social life is thick with particular loyalties.

- **Objection -> reply.** Objection: this makes all partiality corrupt, which is absurd. Reply: corruption is the WRONGFUL subordination of the universal PUBLIC rule to a particular interest, not the mere existence of particular attachments -- family loyalty is not corruption; diverting a public office to serve it is.

Verdict. Agree -- corrupt practices reveal exactly this particularistic / universalistic tension, resolved in the public domain by the universalistic duty of trusted office overriding particular loyalty.

MEMORY: MEMORY: Why this earns marks -- it endorses the statement while disciplining it (wrongful subordination, not all partiality), grounding the answer in C14's definition rather than generic anti-corruption rhetoric.

Solved PYQ 12 - 2025 Q3(a), 20 marks

Question: Can one's right to life be absolute? Answer with reference to the idea of Capital Punishment.

Model solution

Thesis. No -- the right to life is not treated as absolute even by its defenders; but that concession does NOT license capital punishment, because custodial killing does not meet the conditions (imminent-threat self-defence, necessity) under which taking life is permitted.

- **What makes it hard.** The case is a three-way clash between desert, deterrence and dignity; separating the three questions (C4) reorganises it.

- **Doctrine.** The right to life is qualified even by its champions: self-defence and necessity are conceded exceptions (canonical 5), so an exceptionless right cannot be simply asserted. The decisive move is therefore CONDITIONAL -- is custodial killing relevantly LIKE self-defence? It is not: a convicted prisoner poses no imminent threat that only killing can avert, and imprisonment already incapacitates. So the permitted exceptions do not reach the execution of a disarmed offender.

- **Competing theories at strength.** Retention: retributive desert (Kant, C1, himself a retentionist), deterrence (C3), incapacitation. Abolition: dignity, irreversibility, arbitrariness and discrimination, brutalisation; Beccaria's utilitarian abolitionism (C3).

- **Objection -> reply (two chains, including fallibility and standing).** (1) Objection: some crimes deserve death and society may defend itself. Reply: secure imprisonment already achieves incapacitation, so the self-defence analogy fails; and the fallibility verdict -- an irrevocable penalty by a fallible, unequally applied process cannot satisfy the proportionate desert offered to justify it. (2) Objection: the state takes life in war and self-defence, so why not in punishment? Reply: those involve imminent threat or necessity absent in custodial killing; Duff's standing point (C6) further weakens the state's title where it has denied the conditions of citizenship.

- **Critical qualification.** Distinguish philosophical evaluation from current law.

Indian legal facts (C15) -- Bachan Singh v. State of Punjab (1980, JUDGMENT) articulating the "rarest of rare" framework, and Law Commission of India Report No. 262 (2015, REPORT) recommending abolition except for terrorism-related offences -- are dated legal facts, not philosophical proofs.

Verdict. The right to life is not absolute, but its permitted exceptions do not extend to killing a disarmed, incapacitated prisoner; capital punishment therefore cannot be justified by the "not absolute" concession, and its irreversibility makes it incompatible with the very desert invoked to justify it.

MEMORY: MEMORY: Why this earns marks -- it concedes "not absolute", then blocks the inference with the custodial-killing-is-not-self-defence move, runs fallibility and standing (C6), and classifies the Indian facts (C15) as facts, not proofs.

ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS

Three original questions authored for this package (not PYQs), one each at 10, 15 and 20 marks, with full model solutions.

Original Mains 1

Original practice - Socio-Political Philosophy Paper II - 10 marks - answer in about 150 words - directive: State / Explain

Question: State the conditions that a punishment must satisfy to be just, and explain why responsibility is not identical with causal contribution.

Model solution

Thesis. A punishment is just only if it satisfies a cluster of conditions centred on responsible agency, and the hinge of that cluster is that responsibility is not the same as merely causing an outcome.

Conditions (canonical 1.2). A public law known in advance; a voluntary act or a legally relevant omission; culpability proportionate to intention, knowledge, recklessness or negligence; fair procedure and reliable proof; a competent and impartial authority; proportionality between wrong, responsibility and sanction; and equal application without status bias.

Responsibility vs causal contribution. A person may causally contribute to a harm without the knowledge or control that grounds blame, so causation alone does not establish liability; conversely, an official can be responsible for a culpable OMISSION that caused nothing directly. Responsibility tracks agency -- capacity, knowledge and control -- not the bare causal chain.

Verdict. Just punishment answers to responsible agency and proportionality; where the conditions or genuine responsibility are absent, the practice loses its justification even if causation is present.

MEMORY: MEMORY: seven conditions (public law, voluntary act, proportionate culpability, fair procedure, competent authority, proportionality, equal application); responsibility = agency, not causal contribution (canonical 1.2).

Original Mains 2

Original practice - Socio-Political Philosophy Paper II - 15 marks - answer in about 250 words - directive: Critically examine

Question: Critically examine the claim that restorative justice can replace retributive punishment for serious crimes.

Model solution

Thesis. Restorative justice is a valuable and sometimes superior response, but for serious crimes it can SUPPLEMENT, not fully REPLACE, retributive and authoritative condemnation; it is conditionally appropriate.

Doctrine. Restorative justice reconceives crime as a harm to persons and relationships and makes victim, offender and community central participants (C8); Braithwaite's reintegrative shaming supplies the mechanism -- shame the act while keeping the person, offering a route back (C9). Mapped onto the three questions (C4): at Q1 the aim is repair; at Q2 liability still requires an admitted or proved voluntary wrong, so restoration does not bypass guilt; at Q3 the measure is what repair requires rather than what desert permits.

Critical examination (objection -> reply -> residual). (1) Proportionality: outcomes vary with the victim's temperament, so like cases are treated unlike; reply -- defensible schemes operate inside desert-set upper and lower limits, which concedes that the retributive framework remains the outer constraint. (2) Power imbalance: face-to-face process can re-traumatise or coerce in domination cases (domestic violence, caste atrocity); reply -- restoration is only conditionally appropriate, needing voluntariness, prior safety and screening; this is the strongest objection and cannot be fully answered. (3) Public wrong: if crime is only private harm, denunciation disappears; reply -- Feinberg (C5) and Duff (C6) show some wrongs must be publicly named, so condemnation must remain.

Verdict. Restoration within desert limits, supplementing authoritative condemnation -- not a general substitute for serious offences.

MEMORY: MEMORY: restoration = repair (C8/C9) inside desert bands; three objections (proportionality, power imbalance, public wrong); supplement not replace for grave crimes.

Original Mains 3

Original practice - Socio-Political Philosophy Paper II - 20 marks - answer in about 300 words - directive: Discuss

Question: 'Punishment is a constrained practice, not a free exercise of state power.' Discuss with reference to the three justifying questions, human dignity and the Indian debate on capital punishment.

Model solution

Thesis. Punishment is legitimate only as a CONSTRAINED practice: its aim may be forward-looking, but its application is bound by desert, dignity and due process. The capital-punishment debate is where these constraints bite hardest.

What makes it hard. Every punishment stem hides a clash between desert, consequence and dignity; the way to organise it is to separate the three questions (C4).

The three questions. Q1 general justifying aim -- the institution exists to prevent harm and protect security; Q2 distribution -- only the guilty, only for a voluntary act, only to the extent of culpability; Q3 amount -- proportionality, ordinal ranking under a cardinal ceiling set by desert (C10). Pure deterrence fails Q2 (it could punish the innocent); pure retribution struggles at Q1 -- so the defensible view is consequentialist in aim, retributivist in constraint.

The constraints as substance. Legality, culpability, proportionality, human dignity, due process, equality and a preserved possibility of reintegration together mark punishment off from raw power. Retribution treats the offender as an end (C1, C2); reform preserves a route back (canonical 1.6); restoration repairs harm (C8) -- and Foucault (C7) warns that reformatory rhetoric can mask intensified control, so aims must be judged by techniques.

The Indian capital-punishment test. The right to life is not absolute, but executing a secured prisoner is not self-defence -- there is no imminent threat and less final means exist (canonical 5.5); under fallibility and unequal administration, an irreversible penalty cannot satisfy the very desert invoked for it. Indian legal facts, correctly classified (C15): Bachan Singh (1980, JUDGMENT) 'rarest of rare'; Law Commission Report No. 262 (2015, REPORT) recommending abolition except for terrorism-related contexts -- facts, not proofs.

Verdict. Punishment is justified only within legality, culpability, proportionality, dignity, due process, equality and reintegration; the death penalty shows the constraints at their most demanding, where irreversibility makes the practice hardest to justify.

MEMORY: MEMORY: constrained practice = aim (Q1) inside desert limits (Q2/Q3); constraints = legality, culpability, proportionality, dignity, due process, equality, reintegration; capital punishment = right-to-life-not-absolute + custody distinction + fallibility; India C15 as facts.